

AMADOR SUPERIOR COURT CASE MANAGEMENT CONFERENCE TENTATIVE RULINGS

Civil Cases

8/21/2015

TO REQUEST A HEARING ON ANY MATTER ON THIS CALENDAR, YOU MUST CALL THE COURT AT (209) 257-2692 BY 4:00 P.M. ON THE DAY PRECEDING THE HEARING. NOTICE OF THE INTENTION TO APPEAR MUST ALSO BE GIVEN TO ALL OTHER PARTIES.

IF THE CLERK IS NOT NOTIFIED OF A PARTY'S INTENTION TO APPEAR, THERE WILL BE NO HEARING AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT. NO FURTHER NOTICE OF THE COURT'S RULING WILL BE PROVIDED.

Case Number	Primary Party / Attorney	Secondary Party / Attorney
14-CVC-08979	ROY, DAVID/ PIANO, JILL	DAVIS, BRENDA/ SEATON, JEFFREY

TENTATIVE RULING:

Defendant's motion to continue case management conference: The motion is granted. Case Management Conference set for September 21, 2015 is continued to October 19, 2015 at 3:30 p.m. in Department 3.

TENTATIVE RULING:

Real Party's request to strike Petitioner's opposition or consider only the first 15 pages is denied. The Court, in its discretion as considered Petitioner's opposition in its entirety.

Petitioner's Request for Judicial Notice is denied. Petitioner fails to show that Judicial Notice is required under Evidence Code section 451. The document may be judicially noticed under Evidence Code section 452; however Petitioner fails to show its relevance either in the request for judicial notice or in the memorandum of points and authorities.

The Court finds that Real Party's motion to dismiss on the grounds that the action has not been brought to trial within five years of commencement (Code of Civil Procedure section 583.310) is denied as premature. The Court finds that due to the periods of tolling, the five year period was extended to September 11, 2015.

Real Party's motion to dismiss is GRANTED on the grounds that Petitioner failed to request a hearing within 90 days of filing his lawsuit as required by section 21167.4(a) of the California Environmental Quality Act (Public Resources Code section 21000 et seq.). The petition shall be dismissed in its entirety.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.

TENTATIVE RULING:

Plaintiffs' motion to set trial date is granted. The parties are directed to appear to discuss calendaring and briefing schedules.

The Case Management Conference on calendar for March 7, 2016 is confirmed and shall be vacated upon entry of judgment.

TENTATIVE RULING: There is no tentative ruling in this matter. Plaintiff is directed to appear for argument.

TENTATIVE RULING:

On the Court's own motion, this hearing is continued to October 2, 2015 at 10:00 in Department 2. Prior to hearing the parties are ordered to meet and confer and to agree upon the method they will use for service of correspondence, pleadings and discovery. Said agreement shall be reduced to writing. The parties are ordered to meet and confer via telephone or in person on the issues addressed in the motion and opposition with the purpose of narrowing the responses in controversy. Supplemental motions and responses will be accepted up to September 15, 2015.

TENTATIVE RULING:

Demurrer

The verified complaint failed to state facts sufficient to support a cause of action for misrepresentation as the allegations failed to show formation of a valid contract between seller and first prospective purchaser. The verified complaint alleged that when the first prospective purchaser purported to accept Plaintiffs' May 10, 2014 counter offer, he "submitted at the same time an Addendum adding new terms to the contract." (Complaint at ¶14.) The First Amended Complaint alleges the first prospective purchaser "submitted...an Addendum attempting to add new terms to the contract. (FAC at ¶14.) This is based on the new allegation that the first prospective purchaser did not check the box labeled "SUBJECT TO THE ATTACHED COUNTER OFFER" above his signature on the May 10, 2014 counteroffer. (FAC at ¶16.) Allegations in a verified complaint are binding and cannot be contradicted in subsequent pleadings. Moore v. Hill (2010) 188 Cal.App.4th 1267, 1283 n. 14.

In opposition to the demurrer, Plaintiffs omitted to address the argument that facts alleged in the verified First Amended Complaint that are contradictory to facts alleged in the verified Complaint may not be used to create a cause of action.

Plaintiffs are invited to brief and argue this issue.

~~Motion to Strike~~

Ruling is reserved on Defendant's motion to strike.

TENTATIVE RULING:

Evidentiary Rulings:

1. Requests for Judicial Notice: Plaintiffs' request for judicial notice A, B, C, D, E and F are granted.
2. Defendants' objection to Declaration of Dr. Hugh West: Overruled. The declaration speaks to objective signs of abuse, which is relevant to establish duty to report suspected child abuse.
3. Defendant's objection to Declaration of Dr. Stewart: Overruled. The declaration speaks to objective signs of abuse, which is relevant to establish duty to report suspected child abuse.
4. Plaintiff's objection to Declaration of Dr. MacQuarrie: Overruled as to Paragraph 6; Sustained as to paragraphs 7, 8, 9, 10, 11, 12, 13, 14, and 15.
5. Defendants' objections to evidence referenced in Plaintiff's Separate Statement of Undisputed Material Fact: Overruled as to Nos. 9 and 10, 11, 12.
6. Plaintiff's objections to evidence referenced in Defendant's Separate Statement of Undisputed Material Fact and Facts in Dispute: Sustained as to Nos. 1, 2, 3 and 4.

The Court finds the case of *Lugtu v. California Highway Patrol* (2001) 26 Cal.4th 703, 725 controlling on the issue of superseding/supervening cause. Application of the doctrine "depends on whether [one's] conduct was within the scope of the reasons imposing the duty upon the actor to refrain from negligent conduct. If the duty is designed, in part at least, to protect the [victim] from the hazard of being harmed by the intervening force...then that hazard is within the duty, and the intervening force is not a superseding cause." *Lugtu v. California Highway Patrol* (2001) 26 Cal.4th 703, 725. According to *Lugtu*, the superseding cause affirmative defense cannot apply in this case because duty is established by statute.

Defendants fail to raise any disputed material facts on this issue.

Plaintiff's motion for summary judgment is granted as requested on the grounds that Defendant Brady and Defendant Haymond are mandatory child abuse reporters under Penal Code Section 11165.7(a)(21). Defendants, therefore, as a matter of law, owed a duty to Plaintiff to report any reasonable suspicion of child abuse as defined and described in Penal Code Section 11166;

Any failure by Defendants to comply with their mandatory duties under the Child Abuse and Neglect Reporting Act (Penal Code Sections 11164-11174.3) cannot, as a matter of law, be absolved by Defendants asserting or claiming the "superseding cause defense" as defined in various cases, including cases cited by Defendants in affirmative defenses;

Defendant Brady's and Defendant Haymond's Eleventh Affirmative Defense is dismissed.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.

TENTATIVE RULING: Defendant's Order to Show Cause re Contempt: As plaintiff has cured the contempt, the Order to Show Cause is discharged.